

Ross on Crime
P
Privilege
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Privilege

Privilege against self-incrimination: eight principles	[16.5300]
Legislation	[16.5305]
Not simply a rule of evidence	[16.5310]
Court must be satisfied that the objection is proper	[16.5315]
No exception to the privilege	[16.5320]
Statute abrogating the privilege	[16.5325]
Judge's certificate abrogates privilege	[16.5330]
Examples of privilege abrogated by statute	[16.5335]
Legislation to coerce a statement or answer	[16.5340]
Privilege does not apply to a corporation	[16.5345]
Uniform Evidence Acts	[16.5347]
Prosecution should not be possessed with evidence of accused obtained under compulsion	[16.5348]
Other references	[16.5350]

[16.5300] Privilege against self-incrimination: eight principles

In *Accident Insurance Mutual Holdings Ltd v McFadden* (1993) 31 NSWLR 412 (CA) Kirby P set forth eight principles of the privilege against self-incrimination. Each was developed. What follows is the essence. Kirby P said (at 420–424):

1. The principle that a person is exempt from an obligation to incriminate himself or herself is fundamental to a civilised legal system...
2. The basis of the privilege against self-incrimination was explained long ago by Lord Eldon LC in *Paxton v Douglas* (1812) 19 Ves Jun 225 at 227–228; 34 ER 502 at 503 ...

The principle is rooted deep in the resistance of our system of law to obliging a person to convict himself or herself by that person's own testimony; see, eg, *Sorby v Commonwealth* (1983) 152 CLR 281 at 294, 308. Such a person has ordinarily a right to remain silent in the face of an accusation of a crime or wrongdoing. To the extent that the privilege against self-incrimination is eroded, so are attributes of freedom conventionally regarded as important...

3. Often the suggested derogation from the privilege against self-incrimination arises from the terms of legislation. The rule as to self-incrimination has been described (in relation to a Federal statute) as “a mere evidentiary rule...open like all rules of evidence to Parliamentary regulation”: see *Huddert, Parker & Co Pty Ltd v Moorehead* (1909) 8 CLR 330 at 386; see also *Hamilton v Oades* (1989) 166 CLR 486; *R v Scott* (1856) Dears & Bell 47; 169 ER 909; *Kempley v The King* [1944] ALR 249 at 251f. Nevertheless, statutes will be construed, unless their language is clear, so as to prevent or diminish infringement of the privilege: see *Hammond v Commonwealth of Australia* (at 197); *Pyneboard Pty Ltd v Trade Practices Commission* (1983) 152 CLR 328 at 337, 346 ...

The test traditionally applied is whether the person claiming the privilege genuinely and reasonably apprehends a danger from being compelled to answer the question objected to: *R v Boyes* (1861) 1 B & S 310; 121 ER 730;

4. A mere statement by a witness that the answer may tend to incriminate that witness is not sufficient to found the claim for the privilege against self-incrimination. The Court must be satisfied that there is reasonable ground and that the objection is taken bona fide: *Jackson v Gamble* [1983] 1 VR 552 at 556. The test applied is whether there is a “real and appreciable risk of criminal proceedings...being taken against” the witness: see *Rank Film Distributors Ltd v Video Information Centre (A Firm)* [1982] AC 380 at 441. A remote or slight possibility of legal peril to a witness may not, in a particular case, be sufficient to invoke the privilege if pardoned (as was the case in *R v Boyes* (1861) 1 B & S 310; 121 ER 730) or if earlier dealt with by law upon the subject said to give rise to the apprehension of jeopardy. If criminal

proceedings have been concluded (either by acquittal or by conviction and sentence) a person can stand in no further jeopardy of punishment upon the precise matters already dealt with;...

5. Where a question arises as to whether the claimed privilege is not claimed bona fide or whether the danger apprehended is without substance, it is clear law that “great latitude should be allowed to [the witness] in judging for himself the effect of any particular question”: see *R v Boyes* (1861) 1 B & S 310; [121 ER 730 \(at 311; 730\)](#).
6. The foregoing considerations will be reasons for caution in deriving a conclusion that the claim of the privilege against self-incrimination is not made bona fide. There is authority to suggest that a want of subjective bona fides in invoking the privilege will remove the privilege: see, eg, *Ex parte Reynolds; Re Reynolds* (1882) 20 Ch D 294 at 300; *R v The Justices of Armagh* (1883) 18 IR LTR 2 at 3; *BTR Engineering (Australia) Ltd (formerly Borg-Warner Australia Ltd) v Patterson* (1990) 20 NSWLR 724 at 730. However, in my respectful view this is a dubious principle. What is in issue, ultimately is not the subjective fears of the witness claiming the privilege but the objective tendency of the question to expose that witness to the risk of criminal prosecution...

One witness may have multiple motives and even mala fides. But if the question is such *in fact* as to expose him or her to the risk of future prosecution, it is the duty of the judicial officer to uphold the privilege. It will be easier and more reliable to assess the reasonableness of the apprehension than the genuineness of the sentiment. A court can quite readily speculate upon and judge the possible use of demanded oral testimony. The devil himself knoweth not the mind of man [or woman];

7. It is for the presiding judicial officer to determine whether the objection taken is good and whether there are reasonable grounds for the belief on the part of the witness that he or she is, or may be, in peril of future criminal or like proceedings if the answer is given. Just as the court must protect the privilege, it must also make sure that the rule is not abused; but applied only where its invocation is justified: see *Triplex Safety Glass Co Ltd v Lancegaye Safety Glass (1934) Ltd* [1939] 2 KB 395 at 403. The proper procedure in a claim for privilege is to object to each question as it is asked: see *Ex parte Reynolds* (1882) 20 Ch D 294 (at 294); *Brebner v Perry* [1961] SASR 177 at 180. It is not proper to refuse to be sworn or to decline to answer any questions at all or to claim a global protection from the privilege. Such a refusal may amount to a contempt of court: see *Smith v The Queen* (1991) 25 NSWLR 1 at 9. Nevertheless, a point will be reached in questioning where it will be unnecessary to persist with an entire cross-examination which is clearly futile by reason of the invocation of the privilege against self-incrimination. To demand a tedious repetition of questions, rebuffed every time by a claim of privilege which is upheld, would be pointless;...

8. The privilege against self-incrimination may be waived in certain circumstances. In this respect it accords with other privileges. This much is clear law: see, eg, JH Wigmore, *Evidence in Trials at Common Law* (1961) Boston, Little, Brown & Co, vol 8 at 453ff and *BTR Engineering* (1990) 20 NSWLR 724 (at 727). The presence of a privileged document in the hands of a third party does not necessarily destroy the privilege. The question remains whether the party entitled to the privilege has actually waived it: see *Kennedy v Lyell* (1883) 23 Ch D 387; *Trade Practices Commission v Sterling* (1979) 36 FLR 244; *Hartogen Energy Ltd (In Liq) v Australian Gaslight Co* (1992) 109 ALR 177; cf *Giannarelli v Wraith [No 2]* (1991) 171 CLR 592 at 604. The extent of possible waiver is, however, disputed. The respondents asserted, with the support of Wigmore, that it was available in two cases only, being the two mentioned by that author, viz, by contract or other binding pledge before trial and by voluntarily testifying in the case. I do not consider that this states the common law of Australia. It is conceptually unsatisfactory. It appears to be inconsistent with the passage of Lord Barker LC in *East India Co v Atkins* (1719) 1 Str 168 at 176; 93 ER 452 at 457 where it was pointed out that what was involved is “only a privilege, not an actual right”. It also appears to be incompatible with reasoning of the High Court of Australia in analogous cases: see, eg, *Attorney-General for the Northern Territory v Maurice* (1986) 161 CLR 475 at 480. Nevertheless, as with any waiver, it is necessary to define with some precision what is waived. It will be rare that a person is taken to have waived all rights and privileges in respect of any prosecution for any offence arising out of circumstances only generally defined. The point of difficulty will be presented by the definition of the subject matter of the waiver. This will require assessment of the reasonable interpretation to be placed upon the conduct of the witness said to amount to the waiver.

[16.5305] Legislation

Some legislation refers to privilege against self-incrimination:

Uniform Evidence Acts s 128(2) (for discussion, see *McCarthy v The Queen* [2008] NSWCCA 320; *Meiko Australia Pacific Pty Ltd v Hinchliffe* [2009] NSWSC 354; *Ying v Song* [2009] NSWSC 1344); *Director of Public Prosecutions (Vic) v Peters* [2019] VSCA 193.

Qld: *Evidence Act 1977* ss 10 and 15;

WA: *Evidence Act 1906* ss 11 and 24;

SA: Common Law;

NZ: *Evidence Act 2006* s 60.

[16.5310] Not simply a rule of evidence

on J said in *Baker v Campbell* (1983) 153 CLR 52; 49 ALR 385 (at 127; 442–443):

[T]he majority in *Pyneboard Pty Ltd v Trade Practices Commission* (1983) 152 CLR 328 ... was not prepared to hold that privilege against self-incrimination was inherently incapable of application in non-judicial proceedings, having regard to the view that the rule of the common law *nemo tenetur seipsum accusare* is too fundamental a bulwark of liberty to be categorized simply as a rule of evidence.

(*Nemo tenetur seipsum accusare* is a Latin phrase meaning no one is bound to incriminate himself.)

[16.5315] Court must be satisfied that the objection is proper

Brebner v Perry [1961] SASR 177 (Mayo J);

Jackson v Gamble [1983] 1 VR 552 at 555–556 (Young CJ);

Accident Insurance Mutual Holdings Ltd v McFadden (1993) 31 NSWLR 412 (CA) (Kirby P at 422–423).

[16.5320] No exception to the privilege

In *Reid v Howard* (1995) 184 CLR 1; 131 ALR 609; 83 A Crim R 288 Toohey, Gaudron, McHugh and Gummow JJ said (at 14; 618; 297–298):

There is simply no scope for an exception to the privilege, other than by statute. At common law, it is necessarily of general application—a universal right which, as Murphy J pointed out in *Pyneboard Pty Ltd v Trade Practices Commission* (1983) 152 CLR 328 at 346, protects the innocent and the guilty. There is no basis for excepting any class or category of person whether by reference to legal status, legal relationship or, even, the offence in which he or she might be incriminated because, as already indicated, its purpose is the completely general purpose of protecting against “the peril and possibility of being convicted as a criminal” *Lamb v Munster* (1882) 10 QBD 110 at 111.

[16.5325] Statute abrogating the privilege

In *Pyneboard Pty Ltd v TPC* (1983) 152 CLR 328; 45 ALR 609 Mason ACJ, Wilson and Dawson JJ said (at 341; 618):

The privilege will be impliedly excluded if the obligation to answer, provide information or produce documents is expressed in general terms and it appears from the character and purpose of the provision that the obligation was not intended to be subject to any qualification. This is so when the object of imposing the obligation is to ensure the full investigation in the public interest of matters involving the possible commission of offences which lie peculiarly within the knowledge of persons who cannot reasonably be expected to make their knowledge available otherwise than under a statutory obligation. In such cases it will be so, notwithstanding that the answers given may be used in subsequent legal proceedings.

Answers made under compulsion of law are not, on that account involuntary.

In *R v Zion* [1986] VR 609 Murphy J ruled that answers made under compulsion in a bankruptcy examination were admissible in a criminal trial.

In *R v Azar* (1991) 56 A Crim R 414 (NSW CCA) Gleeson CJ said (at 421):

[I]t has been held that answers made under compulsion of law are not, on that account, involuntary: *Kempley* (1944) 44 SR (NSW) 416; *Owen* [1951] VLR 393; *Travers* (1957) 58 SR (NSW) 85; *Zion* [1986] VR 609.

In *Reid v Howard* (1993) 31 NSWLR 298 (CA) Handley JA delivering the leading judgment said (at 302):

Cases dealing with the admissibility of statements made under the statutory compulsion may not be relevant in the present context: see *Kempley v The King* (1944) 18 ALJ 118; [1944] ALR 249 and *Commissioner of Customs and Excise v Harz* [1967] 1 AC 760. In my opinion these cases are to be explained on the basis that the statutes which impose the duty to answer had to that extent abrogated the privilege: see *Cross on Evidence*, 4th Australian ed, (1991) at 960–961.

Evidence given to the National Crime Authority is not necessarily involuntary and inadmissible: *DPP (Vic) Reference No 2 of 1996* (1997) 141 FLR 414; 96 A Crim R 519; [1998] 3 VR 241 (CA). The body is now the Australian Crime Commission: *Australian Crime Commission Act 2002* (Cth). That Act deprives a witness of the privilege against self incrimination. It may give a limited use indemnity: *A v Boulton* (2004) 146 A Crim R 395; 207 ALR 342 (FCA).

In *Lee v New South Wales Crime Commission* (2013) 251 CLR 196; 235 A Crim R 326; [2013] HCA 39 the High Court by majority held that s 31D of the *Criminal Assets Recovery Act 1990*

(NSW) enables the Court to examine on oath parties about subject matters that may overlap with criminal proceedings that parties are subjected to. Any potential prejudice to an accused could supposedly be mitigated by orders relating to how the information could be used. See also, *X7 v Australian Crime Commission* (2013) 248 CLR 92; 232 A Crim R 410; [2013] HCA 29.

See also

Indemnity at [9.1600].

But where the caution was not properly administered and no advice given on where a refusal to answer questions would be accepted or at least noted, the records of interview were held inadmissible: *Workcover Authority (NSW) v Secombe* (1998) 43 NSWLR 390; 101 A Crim R 303 (NSW Indus Rel Comm).

See also

R v McDonnell; Ex parte Attorney-General [1988] 2 Qd R 189; (1987) 78 ALR 393 (CCA);

R v Hood (1997) 91 A Crim R 526 (NSW CCA);

DPP (Vic) Reference No 2 of 1996 141 FLR 414; 96 A Crim R 519; [1998] 3 VR 241 (CA);

DPP (NSW) v Alderman (1998) 45 NSWLR 526 (CA).

[16.5330] Judge's certificate abrogates privilege

In some jurisdictions a judge can give a certificate to a witness who declines to answer questions on the ground of self incrimination. The certificate has the effect of an indemnity and abrogates privilege.

See also

Indemnity (Judge's certificate) at [9.1615].

[16.5335] Examples of privilege abrogated by statute

Police Regulation (Pensions) Act 1958 (Vic): *Police Service Board v Morris* (1985) 156 CLR 397; 58 ALR 1: requiring answers at police disciplinary proceedings;

Uniform Evidence Acts s 128(5): *Bax Global (Aust) Pty Ltd v Evans* (1999) 47 NSWLR 538 (Austin J).

Australian Crime Commission Act 2002 (Cth), but it does not permit an examiner to conduct an examination of a person charged with a Commonwealth indictable offence if the examination relates to the subject matter of the charged offence: *X7 v Australian Crime Commission* (2013) 87 ALJR 858; [2013] HCA 29.

[16.5340] Legislation to coerce a statement or answer

Quite a number of laws require evidence to be given but make that evidence inadmissible in later proceedings.

In *Sorby v Commonwealth* (1983) 152 CLR 281; 46 ALR 237 it was held that for the privilege against self-incrimination to be removed, clear statutory provision to that effect is required. The case concerned a Royal Commission about drug dealings. The court said (at 310–311):

When a legislature abrogates the privilege against self-incrimination it often gives compensatory protection to the witness by providing, as s 14(2) does, that an answer shall not be admissible in civil and criminal proceedings other than in proceedings for contempt or for an offence under the Act.

After analysis of the provisions the majority said (at 311):

There is no sufficient indication in the Act that a witness is not entitled to that protection if the reason for his refusal is a well-grounded claim to the privilege against self-incrimination.

In *R v Carr* [1972] 1 NSWLR 608 (CCA) it was held (at 612) that the rule does not apply to a person who incriminates himself by giving fingerprints. It applies only to answers to questions.

See also, *R v Seller* [2013] NSWCCA 42.

[16.5345] Privilege does not apply to a corporation

In *Environment Protection Authority v Caltex Refining Co Pty Ltd* (1993) 178 CLR 477; 118 ALR 392 the High Court held 4–3 that privilege against self-incrimination did not apply to a corporation.

[16.5347] Uniform Evidence Acts

Section 128 of the *UEA* governs the privilege against self-incrimination. The privilege under the *UEA* is narrower than at common law. Under the *UEA*, a witness can be required to answer incriminating questions where it is in the “interests of justice” and it will not expose them to an imposition pursuant to a law of another country. Where these conditions are satisfied, the witness is compelled to answer the question (under threat of being charged with contempt of court) and

is provided with what is known at common law as a “derivative immunity”. Under the Act the witness receives a certificate preventing his or her incriminating answers being used against them in another court hearing.

[16.5348] Prosecution should not be possessed with evidence of accused obtained under compulsion

The High Court in *Lee v The Queen* (2014) 253 CLR 455; 237 A Crim R 436; [2014] HCA 20 at [46], stated:

It is a breach of the principle of the common law, and a departure in a fundamental respect from a criminal trial which the system of criminal justice requires an accused person to have, for the prosecution to be armed with the evidence of an accused person obtained under compulsion concerning matters the subject of the charges. It cannot be said that the appellants had a trial for which our system of criminal justice provides and which s 13(9) of the *NSWCC Act* sought to protect. Rather, their trial was one where the balance of power shifted to the prosecution.

[16.5350] Other references

See also

Corporations at [3.7700].